MILITARY ENGINEER SERVICES
NOTICE INVITING TENDER (NIT)

1. A tender is invited for the work as mentioned in Appendix 'A' to this NOTICE INVITING TENDER (NIT).

2. The work is estimated to cost as indicated in aforesaid Appendix 'A'. This estimate, however, is not a guarantee and is merely given as a rough guide and if the work costs more or less, a tenderer/bidder will have no claim on that account.

3. The work is to be completed within the period as indicated in aforesaid Appendix 'A' in accordance with the phasing, if any, indicated in the tender from the date of handing over site, which will be on or about two weeks after the date of acceptance of tender.

4. Contractors whose names are on the MES approved list and within whose financial category the estimated amount would fall and unenlisted contractors may submit tender/bid subject to other criteria mentioned in Appendix A. Not more than one tender shall be submitted/uploaded by one contractor/ firm. Under no circumstances will a father and his son(s) or other close relations who have business dealing with one another be allowed to tender/bid for the same contract as separate competitors. Two firms shall be deemed to have business dealing if any of the partners/proprietor/director is common among both of them. A breach of this condition will render the tenders/bids of both the parties liable for rejection.

5. The Office of Chief Engineer Jabalpur will be the Accepting Officer here-in-after referred to as such for the purpose of this contract.

6. Not more than one tender/bid shall be submitted/uploaded by one bidder firm. Under no circumstances will a father and his son(s) or other close relations who have business dealing with one another be allowed to tender/bid for the same tender as separate competitors. A breach of this condition will render the tenders/bids of both the parties liable for rejection.

7. The Technical Bid and Financial Bid (Cover-1 and Cover-2) shall be uploaded by the contractor on or before the date & time mentioned in **NIT**. A scanned copy of DD with enlistment details and other documents as specified in Appendix A shall be uploaded as Cover-1 (Technical bid) of the tender on e-tendering portal. DD is refundable in case the contractor is not considered eligible in technical evaluation of Cover 1 resulting in non-opening of Cover1. The applicant contractor shall bear the cost of bank charges for procuring and en-cashing the DD including revalidation of DDs and shall not have any claim from Government whatsoever on this account.

8. Tender form and conditions of contract and other necessary documents shall be available on website defproc.gov.in for download and shall form part of contract agreement in case the tender/bid is accepted.

9. In case of MES enlisted contractor who has not executed the Standing Security Bond and un enlisted contractor, the Cover-I shall be accompanied by Earnest Money for the amount mentioned in Appendix 'A' in the form of deposit at call receipt in favour of concerned CCE/GE/GE (I)/AGE (I) (see Appendix 'A') by a Scheduled Bank or in received treasury Challan the amount being credited to the revenue deposit of the concerned CCE/GE/GE(I)/AGE(I) (see Appendix 'A'). The CCE/GE/GE (I)/AGE (I) will return the Earnest Money, wherever applicable, to all unsuccessful tenderers/bidders by endorsing an authority on the deposit at call receipt for it's refund, on receipt of intimation from the Accepting Officer to do that.

NIT (CONTD...)

10. In case of successful contractor i.e. the lowest contractor having submitted EMD, he shall have the option of converting the EMD instrument into part of the Performance Security to be deposited by him within 28 days from the receipt of intimation of acceptance of tenderfrom Accepting Officer.

11. Sample of materials and stores to be supplied by the contractor will also be available for inspection by the bidder at the office of concerned **GE(MIS) Mhow** during working hours. The bidder is advised to visit the site of work by making prior appointment with **GE(MIS) Mhow**, who is the Executing Agency of the work (see Appendix 'A'). The bidder shall be deemed to have full knowledge of all relevant documents, samples, site etc whether he has inspected them or not.

12. Any bid which proposes any alteration to any of the conditions laid down or proposes any other new condition whatsoever, is liable to be rejected.

13. The uploading of bid by a bidder implies that bidder has read this notice and the conditions of contract and has made himself aware of the scope and specification of work to be done and of the conditions and rates at which stores (as applicable) etc will be issued to him and local conditions and other factors having bearing on the execution of the work.

14. The bidder must be in possession of a copy of the MES Schedule (SSR) (Part-I & Part-II of latest edition) including amendments and errata thereto.

15. Accepting Officer does not bind himself to accept the lowest or any tender/bid or to give any reason for not doing so.

16. The Accepting Officer reserves the right to accept a tender submitted by a Public Undertaking/Small & Medium Enterprises (SMEs), giving a price preference/purchase preference over other tender(s)/bids which may be lower, as are admissible under the Government Policy. No claim for any compensation or otherwise shall be admissible for such tenderer/bidder whose tender/bid is rejected.

17. The **Notice Inviting Tender (NIT)** including Appendix 'A' and Annexures thereto, if any, shall form part of the contract agreement.

_____
(Signature of Contractor)

_____
Dy Dir/ Asst Dir (Contracts)
For Accepting Officer

APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)

1.	Name of work	**PROVN OF HRDC BLDG AT INF SCHOOL, MHOW** **TENDER ID : 2024_MES_688696_1**
2	Estimated Cost	**Rs. 510.525 Lakhs** (At par Market)
3	Period of completion	84 weeks
4	Cost of tender documents	**Rs. 3000.00** in the shape of DD / Bankers cheque from any schedule Bank in favour of **GE(MIS) Mhow** and payable at **Mhow**. (Note : In case of retendering, the contractor who had quoted in the previous call is not required to submit the cost of tender.)
5	Website / portal address	www.defproc.gov.in
6	Type of Contract	The tender shall be based on drawing and specifications (IAFW – 2159 and GCC (IAFW-2249) with Sch 'A'(list of items of work) to be priced by MES. The Contractor is required to quote the lump sum amounts for parts of schedule 'A' and quote rates against items of other parts of schedule 'A'.
7	Information Details	
	(a) Bid Publish date	Please refer defproc portal for critical dates.
	(b) Bid submission start date	
	(c) Bid submission end date	
	(d) Date / time for opening of bid (Cover-1)	
8	Eligibility Criteria	
	(A) For MES enlisted Contractors	Contractor shall be enlisted with MES in **Class ' A '** and above and category **'a (i) '**subject to satisfactory remarks wrt performance in respect of works in hand as reflected in Work Load return (WLR) or any other report circulated by competent engineer authority .
	(B) For other contractors	(i) Contractor not enlisted with MES should meet the enlistment criteria of **Class ' A ' & category a(i)** contractor with regard to satisfactorily completion of requisite value works with Central/State Government/ Central/ State PSUs/ AWHO/ AFNHB/ CGEWHO / DGMAP, annual turnover, bank solvency, working capital and other requirements given in Para 1.4 & 1.5 of Section 1 of MES Manual of Contracts 2020 as available in all MES formations as well as MES website **(www.mes.gov.in).** (ii) Not carrying adverse remarks in Work Load Report (WLR) or any other similar report circulated by any competent authority, if already working in MES. (iii) Not suspended/debarred/blacklisted (either permanently or temporarily) from participating in any bid or for business dealings by any Central/State Government Department or any Central/State Government PSU or any Autonomous Bodyunder Central/State Government or any Local Body as on the bid submission end date. (iv) Details of work completed and under progress in MES be submitted in following format. SN | CA No. & Name of Work | Value of CA | Date of Commencement | Date of Completion | Extended date of Completion Unenlisted Contractors who have secured two works in MES should get themselves registered in appropriate designated class with any registering authority, else the firm will not be eligible for participation in the tender unless until the firm is enlisted with the MES.
	(C) For All contractors	Contractor will not be allowed to execute the work by subletting or through power of attorney holder on his behalf to a third party/ another firm **except Sons / Daughters/ Spouse of Proprietor/ Partner/ Director and firm's own employees, Director, Project Manager**.This shall be subject to certain conditions which will be prescribed in the NIT forming part of the tender documents.
9	Tender issuing and Accepting Officer	Chief Engineer Jabalpur Zone 482001
10	Executing agency	**GE(MIS) Mhow**
11	Earnest Money	Rs. 5,80,300.00 in favour of **GE(MIS) Mhow**

APPENDIX 'A' TO NOTICE INVITING TENDER …Contd

NOTES:-

1. In case after opening of Cover-1, the number of MES enlisted contractors of eligible class as well as eligible un-enlisted contractors, if any, fulfilling the other eligibility criteria given in NIT is less than 7 (Seven), applications in respect of MES contractors of one class or two classes (in case of remote and difficult areas to be decided as per list circulated by CE command/ADG) below the eligible class shall also be considered subject to fulfilment of other eligibility criteria given in the NIT. Therefore MES contractor's one class below (two classes below in case of remote and difficult areas) may also bid for this tender. Such contractors (contractors of one/two classes below the eligible class) shall not be considered in case their present residual work in hand is more than **FIVE TIMES** their present tendering limit. However in case such contractors fulfil the criteria of upgradation to the stipulated eligible class based on past experience of completed works (individual work experience and/or average annual turnover, as applicable) and financial soundness (solvency/financial soundness and working capital), the ceiling of present residual work will not apply and they will be considered for issue of tender. Such bidders shall upload in their Cover-1 bid details related to residual work in hand like details of works in hand showing names of work, names of Accepting Officers, contract amounts, dates of commencement and completion (stipulated) and progress as on bid submission date. Such contractors, if claim to fulfil the criteria of upgradation shall also upload the requisite information/documents in support of upgradation. These details shall be verified by the Tender Issuing Authority from concerned formations in case bids of such contractors are considered for evaluation.

2. In case after opening of Cover 1, the number of MES enlisted contractors of eligible class as well um-enlisted contractors, if any, fulfilling the other eligibility criteria given in NIT, are 7 (Seven) or more, applications of only those one class below the eligible class bidders shall be considered, who have previously completed similar works satisfactorily and are meeting the criteria of up gradation in respect of past experience of completed works (individual work experience and/or average annual turnover as applicable) and financial soundness (solvency/financial soundness and working capital) as per details given in Manual on Contracts. Therefore such contractors shall upload the requisite information/ documents in the Cover-1.

3. Unenlisted contractor shall be considered provided he meets the criteria. Foreign firms shall not be eligible for this tender. However Indian firms having foreign national/Indian nationals staying abroad/ Indian national having taken foreign citizenship, as director (s) shall be considered subject to security clearance from the concerned authorities.

4. Contractors enlisted with MES will upload following documents in Cover-1 for checking eligibility:-

(a) Application for tender on Firm's letterhead.
(b) Enlistment letter issued by the Registering Authority duly renewed for the cycle period of vogue.
(c) Scanned copy of DD/Bankers Cheque towards cost of tender and EMD instrument is case SSD bond is not signed at the time of registration.
(d) Scanned copy of EPF code No
(e) Goods &Service tax registration No
(f) Scanned copy of IP duly signed by bidder on each page.

APPENDIX 'A' TO NOTICE INVITING TENDER …Contd

5. Contractors not enlisted with MES will be required to upload following documents in Cover 1 for checking eligibility:-

(a) Application for tender on Firm's letterhead.

(b) Scanned copy of DD/Bankers cheque toward cost of tender and Earnest Money Deposit (EMD) instrument.

(c) Copy of Police Verification Report/Police Clearance Certificate/Character Certificate from the Police Authority of the area where the registered office of the firm is located/notarized copy of valid passport of Proprietor/each Partner/each Director.

(d) All documents required for enlistment in MES for the class mentioned in Para 8 (b) above as per Para 1.5 of Section-I of MES Manual on Contracts 2020.

(e) Details of works being executed in MES if any.

(f) Any other document required as described in this Appendix.

6. Tenders not accompanied by scanned copies of requisite DD/Bankers Cheque towards cost of tender and earnest money (as applicable) in Cover-1 shall not be considered for validation of 'T' bid and their Financial bids will not be opened.

7. Contractors should ensure that their original physical DDs and Earnest Money Deposit (EMD) instruments (as applicable) reach the office of Accepting Officer within 07 (Seven) days of bid submission end date, failing which following action shall be taken:-

(a) In case of tenders from an enlisted contractor of MES, where scanned copies of requisite DD/ Bankers Cheque towards cost of tender have been uploaded in Cover-1 but physical copies are not received within the stipulated period, their financial bids (Cover-2) will be opened. However non-submission of physical copies of cost of tender shall be considered as wilful negligence of the tenderer with ulterior motives and such tenderer shall be banned from bidding for a period of six months commencing from the date of opening of Financial Bid (Cover-2).

(b) In case of tenders from unenlisted contractor, where scanned copies of requisite DD/Bankers Cheque towards cost of tender have been uploaded in Cover-1 but physical copies are not received within the stipulated period, their financial bids (Cover-2) will not be opened. Name of such contractors along with complete address shall be circulated for not opening of their bids for a period of six months commending from the date of opening of Financial bid (Cover-2).

(c) In case of tenders from enlisted and unenlisted contractors, where scanned copies of instruments for Earnest Money Deposit (as applicable) have been uploaded in Cover-1 but the same are not received in physical form with stipulated period, such tenders shall not qualify for opening of financial bid (Cover-2).

8. Contractor will not be allowed to execute the work by subletting or through power of attorney to a third party/another firm on his behalf. However a contractor can execute the work through power of attorney to sons/daughters/spouse of Proprietor/Partner/Director and firm's own employees, director, project manager **provided they are not having a separate enlisted firm in MES in their name as Proprietor/ Partner/Director**.

9. After opening of Cover 1 and during its technical evaluation, in case any deficiency is noticed in the documents required to be uploaded by the tenderers as per NIT, communication in the form of e-mail/SMS/Speed Post etc shall be sent to the contractor to rectify the deficiency within a period of seven days from date of communication failing which their financial bid (Cover 2) shall not be opened and contractor shall not have any claim on the same.

APPENDIX 'A' TO NOTICE INVITING TENDER …Contd

10. Invitation for e-tender does not constitute any guarantee for validation of Technical bid and subsequent opening of financial bid of any applicant/bidder merely by virtue of enclosing DD. Accepting Officer reserves the right to reject the Technical bid and not to open the financial bid of any applicant/bidder. Technical bid validation shall be decided by the Accepting Officer based on eligibility of the firm as per criteria given in this Appendix. Tenderer/bidder will be informed regarding non-validation of his Technical bid assigning reasons therefore through tender evaluation report which shall be uploaded on the website. Such tenderer, if desires, may appeal to the next higher Engineer Authority (NHEA) viz HQ, Chief Engineer, Central Command, Lucknow on email id **jtdgcontceengrll-mes@nic.in** with a copy to Accepting officer on email id **cezj2-mes@nic.in** before the scheduled date of opening of Cover 2. NHEA shall decide the matter within a period of seven working days from the date of receipt of appeal. The decision of the NHEA shall be final and binding. The tenderer/bidder shall not be entitled for any compensation whatsoever for rejection of his bid.

11. In case an unenlisted contractor is already executing works in MES, he shall notbe considered eligible for the subject tender if the total value of such works is more than two times the tendering limit of the MES Class of contractor for which it is eligible. For this purpose, details of the works being executed by such a contractor shall be uploaded in the Cover -1 of the bid and shall be checked/verified by the Accepting Officer.

12. In case the BOQ is revised through the corrigendum and the bidder has failed to quote on revised BOQ (ie he has quoted on pre revised BOQ), such bid shall be treated as willful negligence by the bidder and his quotation shall be considered non-bonafideIn such cases the lowest tender shall be determined from amongst the valid/bonafide bids only. Accepting Officer may decide whether to re-tender or consider the lowest bonafide tender for acceptance.

13. Revoking the offer or revising the rates upward / offering voluntary reduction by the lowest tenderer after opening of Cover 2 shall be considered as a willful default.Forthis default a penalty of an amount equal to Earnest Money shall be levied. In case of an unenlisted tenderer, Earnest Money deposited by him shall be forfeited. In case of MES enlisted tenderer having deposited the Standing Security Bond, an amount equal to the earnest money stipulated in the NIT, shall be notified to the tenderer for depositing through MRO and consideration of such tenderer in tender evaluation for future works shall remain suspended till the aforementioned amount is deposited in the Government Treasury. No other disciplinary/administrative action shall be taken against such tenderers. In such a situation, the next lowest offer shall not be considered for acceptance. Instead, retendering shall be resorted to in a transparent and fair manner and the defaulting tenderer and his related firm if any, shall not be eligible for this tender in second call or subsequent calls.

14. Tender to related firms shall not be issued simultaneously. Firms shall be termed as related if Proprietor/one or more Partners/Directors are common. Decision ofAccepting Officer on issue/deny the tender to any one of the related firms shall be final and binding.

15. The Integrity pact (IP) duly signed by officer on behalf of Accepting Officer has been uploaded alongwith NIT as per 'Annexure "I" to Appendix 'A'. Scanned copy of IP (Integrity Pact) duly signed on each page by the bidder(s) shall be uploaded as part of technical bid (Cover-I) and original IP duly signed on each page shall be forwared by post alongwith demand draft. **Bid of all bidder(s) who do not upload signed copy of IP along with technical bid, (cover-I) shall be rejected.**

_____ _____

(Signature of Contractor)

Dy Dir (C)/ Asst Dir (Contracts)
For Accepting Officer

752955/ A/07/E8 dated 28 Jan 2024

Military Engineer Serivices
Headquarters
Chief Engineer Jabalpur Zone
Ridge Road Jabalpur -482001

To be signed by the bidder and same signatory competent / authorized to sign the relevant contract on behalf of MES.

INTEGRITY AGREEMENT

This Integrity Agreement is made at …….on this ……. day of ……..20…….

BETWEEN

President of India represented through Chief Engineer Jabalpur Zone, Military Engineer Services, HQ Chief Engineer Jabalpur Zone Ridge Road Jabalpur Pin- 482001.

(Here-in-After referred as **'Principal/Owner',** which expression shall unless repugnant to the meaning or context hereof include its successors and permitted assigns)

AND

M/s……

(Name and Address of the Bidder / Contractor)through …….....

…….(Details of duly authorized signatory) (Here in after referred to as the **"Bidder/Contractor"** and which expression shall unless repugnant to the meaning or context hereof include its successors and permitted assigns)

Preamble

WHEREAS the Principal / Owner has floated the Tender (NIT No. 752955/ A/07/E8 Dt. 28 Jan 2025) for **PROVN OF HRDC BLDG AT INF SCHOOL, MHOW.**

(hereinafter referred to as "Tender/Bid") and intends to award, under laid down organizational procedure, contract for **PROVN OF HRDC BLDG AT INF SCHOOL, MHOW**, Herein after referred to as the "Contract"

AND WHEREAS the Principal/Owner values full compliance with all relevant laws of the land, rules, regulations, economic use of resources and of fairness/transparency in its relation with its Bidder(s) and contractor(s).

AND WHEREAS to meet the purpose aforesaid both the parties have agreed to enter into this Integrity Agreement (hereinafter referred to as "Integrity Pact" or "Pact"), the terms and conditions of which shall also be read as integral part and parcel of the Tender/Bid documents and Contract between the parties.

NOW, THEREFORE, in consideration of mutual covenants contained in this Pact, the parties hereby agree as follows and this Pact witnesses as under

1. **Commitment of the Principal/Owner**

(a) The Principal/ Owner commits itself to take all measures necessary to prevent corruption and to observe the following principles;

(i) No employee of the Principal/Owner, personally or through any of his/her family members, will in connection with the Tender, or the execution of the Contract, demand, take a promise for or accept, for self or third person, any material or immaterial benefit which the person is not legally entitled to.

(ii) The Principal/Owner will, during the Tender process, treat all Bidder(s) with equity and reason. The Principal/Owner will, in particular, before and during the Tender process, provide to all Bidder(s) the same information and will not provide to any Bidder(s) confidential / additional information through which the Bidder(s) could obtain and advantage in relation to the Tender process or the Contract execution.

(iii) The Principal/Owner shall endeavor to exclude from the Tender process any person, whose conduct in the past has been of biased nature.

(b) If the Principal/Owner obtains information on the conduct of any of its employees which is a criminal offence under the Indian penal code (IPC)/Prevention of Corruption Act, 1988 (PC Act) or is in violation of the principles herein mentioned or if there be a substantive suspicion in this regard, the Principal/Owner will inform the Chief Vigilance Officer and in addition can also initiate disciplinary actions as per its internal laid down policies and procedures.

2. Commitment of the Bidder(s)/Contractor(s)

(a) It is required that each Bidder/Contractor (including their respective officers, employees and agents) adhere to the highest ethical standards, and report to the Government / Department all suspected acts of fraud or corruption or Coercion or Collusion of which it has knowledge or becomes aware, during the tendering process and throughout the negotiation or award of a contract.

(b) The Bidder(s)/Contractor(s) commits himself to take all measures necessary to prevent corruption. He commits himself to observe the following principles during his participation in the Tender process and during the Contract execution;

(i) The Bidder(s)/Contractor(s) will not, directly or through any other person or firm, offer, promise or give to any of the Principal/Owner's employees involved in the Tender process or execution of the Contract or to any third person any material or other benefit which he/she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the Tender process or during the execution of the Contract.

(ii) The Bidder(s)/Contractor(s) will not enter with other Bidder(s) into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to cartelize in the bidding process.

(iii) The Bidder(s)/Contractor(s) will not commit any offence under the relevant IPC/PC Act. Further the Bidder(s)/Contract(s) will not use improperly, (for the purpose of competition or personal gain), or pass on to others, any information or documents provided by the Principal/Owner as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.

(iv) The Bidder(s)/Contractor(s) of foreign origin shall disclose the names and addresses of agents/ representatives in India, if any. Similarly Bidder(s)/Contractor(s) of Indian Nationality shall disclose names and addresses of foreign agents/representatives, if any. Either the Indian agent or behalf of the foreign principal or the foreign principal directly could bid in a tender but not both. Further, in cases where an agent participate in a tender on behalf of one manufacturer, he shall not be allowed to quote on behalf of another manufacturer along with the first manufacturer in a subsequent/parallel tender for the same item.

(v) The Bidder(s)/Contractor(s) will, when presenting his bid, disclose any and all payments he has made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the Contract.

(c) The Bidder(s)/Contractor(s) will not instigate third persons to commit offences outlined above or be an accessory to such offences.

(d) The Bidder(s)/Contractor(s) will not, directly or through any other person or firm indulge in fraudulent practice means a willful misrepresentation or omission of facts or submission of fake/forged documents in order to induce public official to act in reliance thereof, with the purpose of obtaining unjust advantage by or causing damage to justified interest of others and/or influence the procurement process to the detriment of the Government interests.

(e) The Bidder(s)/Contractor(s) will not, directly or through any other person or firm use Coercive Practices (means the act of obtaining something, compelling an action or influencing a decision through intimidation, threat or the use of force directly or indirectly, where potential or actual injury may befall upon a person, his/her reputation or property to influence their participation in the tendering process).

3. Consequences of Breach

Without prejudice to any rights that may be available to the Principal/Owner under law or the Contractor its established policies and laid down procedures, the Principal/Owner shall have the following rights in case of breach of this Integrity Pact by the Bidders(s)/Contractor(s) and the Bidder/Contractor accepts and undertakes to respect and uphold the Principal/Owner's absolute right.

(a) If the Bidders(s)/Contractor(s), either before award or during execution of Contract has committed a transgression through a violation of Para2 above or in any other form, such as to put his reliability or credibility in question, the Principal/Owner after giving 14 days notice to the contractor shall have powers to disqualify the Bidder(s)/Contractor(s) from the Tender process or terminate/determine the Contract, if already executed or exclude the Bidder/Contractor from future contract award processes. The imposition and duration of the exclusion will be determined by the seventy of transgression and determined by the Principal/Owner. Such exclusion may be forever or for a limited period as decided by the Principal/Owner.

(b) Forfeiture of EMD/Performance Guarantee/Security Deposit. If the Principal/Owner has disqualified the Bidder(s) from the Tender process prior to the award of the Contract or terminated/determined the Contract or has accrued the right to terminate/determine the Contract according to para 3(a), the Principal/Owner apart from exercising any legal rights that may have accrued to the Principal/Owner, may in its considered opinion forfeit the entire amount of Earnest Money Deposit/Performance Guarantee/Security Deposit of the Bidder/Contractor.

(c) Criminal Liability if the Principal/Owner obtains knowledge of conduct of a Bidder of Contractor, or of an employee or a representative or an associate of a Bidder or Contractor which constitutes corruption within the meaning of IPC Act, or if the Principal/Owner has substantive suspicion in this regard, to Principal/Owner will inform the same to law enforcing agencies for further investigation.

4. Previous Transgression

(a) The Bidder declares that no previous transgressions occurred in the last 5 years with any other Company in any country confirming to the anticorruption approach or with Central Government or State Government or any other Central/State Public Sector Enterprises in India that could justify his exclusion from the Tender process.

(b) If the Bidder makes incorrect statement on this subject, he can be disqualified from the Tender process or action can be taken for banning of business dealings/ holiday listing of the Bidder/Contractor as deemed fit by the Principal/Owner.

(c) If the Bidder/Contractor can prove that he has resorted/recouped the damage caused by him and has installed a suitable corruption prevention system, the Principal/Owner may, at its own discretion, revoke the exclusion prematurely.

5. Equal Treatment of all Bidders/Contractors/Subcontractors

(a) The Bidder(s)/Contractor(s) undertake(s) to demand from all subcontractors a commitment in conformity with this Integrity Pact. The Bidder/Contractor shall be responsible for any violation(s) of the principles laid down in this agreement/Pact by any of its Subcontractors/Sub-vendors.

(b) The Principal/Owner will enter into Pacts on identical terms as this one with all Bidders and Contractors.
(c) The Principal/Owner will disqualify Bidders, who do not submit, the duly signed Pact between the Principal/Owner and the bidder, along with the Tender or violate its provisions at any stage of the Tender process, from the Tender process.

6. Duration of the Pact

This Pact begins when both the parties have legally signed it. It expires for the Contractor/Vendor after the final payment under the contract has been made or till the continuation of defect liability period, whichever is more and for all other bidders, till the Contract has been awarded.

If any claim is made/lodged during the time, the same shall be binding and continue to be valid despite the lapse of this Pacts as specified above, unless it is discharged/determined by the competent Authority, MES.

7. Other Provisions

(a) This Pact is subject to Indian Law, place of performance and jurisdiction is the Head quarters of the formation of the Principal/Owner, who has floated the Tender.

(b) Changes and Supplements need to be made in writing. Side agreements have not been made.

(c) If the Contractor is a partnership or a consortium, this Pact must be signed by all the partners or by one or more partner holding power of attorney signed by all partners and consortium members. In case of a Company, the Pact must be signed by a representative duly authorized by board resolution.

(d) Should one or several provisions of this Pact turn out to be invalid; the remainder of this Pact remains valid. In this case, the parties will strive to come to an agreement to their original intensions.

(e) It is agreed term and condition that any dispute or difference arising between the parties with regard to the terms of this Integrity Agreement/Pact, any action taken by the Owner/Principal in accordance with this Integrity Agreement/Pact or interpretation there of shall not be subject to arbitration.

8. Legal and Prior Rights

All rights and remedies of the parties here to shall be in addition to all the other legal rights and remedies belonging to such parties under the Contract and/or law and the same shall be deemed to be cumulative and not alternative to such legal rights and remedies aforesaid. For the sake of brevity, both the Parties agree that this Integrity Pact will have precedence over the Tender/Contact documents with regard any of the provisions covered under this Integrity Pact.

9. Independent Monitors

(a) That the MOD has appointed following Independent Monitors for this Pact:-

Sl No	Name of IEM	E-mail id
1	Shri Narayan Murthy Ganapathy, IFoS (Retd) 3/268, Vipul Khand, Gomtinagar, Lucknow – 226010	gana_narayan@yahoo.com Mobile No. 9415147429
2	Shri Lalatendu Mohanti, IPS (Retd) A-1 Tower-5, New Motibagh, New Delhi - 110023	l.mohanti@gmail.com Mobile No. 9717095659

9.1 Details of Nodal officer nominated by E-in-C's Branch are as follows:-

Name : Shri P K S Sengar, Dir (Contracts)
E-mail id : dircont1winc-mes@nic.in
Postal Address: Room No 158
Dte of Contract Management
Engineer-in-Chief's Branch
Kashmir House, Rajaji Marg
New Delhi-110011,
Tele No – 011-23019154

Any complaint with regard to violation of IP, whenever received, will be referred to the Independent Monitors for their comments/enquiry.

(b) The task of the Monitor, is to review independently and objectively any complaint received with regard to violation of Integrity Pact and offer comments or carry out enquiry as deemed fit.

(c) That the Monitor is not subject to any instructions by the representatives of the parties and would perform his functions neutrally and independently.

(d) That the Bidder/Contractor accepts that if the Monitor needs to access any records then the Monitor shall have the right to access without restriction to all project documentation of the Principal/Owner including that provided by the Bidder/Contractor. The Bidder/Contractor will also grant the Monitor, upon his project documentation including minutes of meeting. The same is applicable to Sub-Contractors and Associates. The Monitor is under obligation to treat the information and documents of the Principal/Owner and Bidder/Contractor/ Sub-Contractors/Associates with confidentiality.

(e) That if the Monitor has reported to the Principal/Owner a substantiated suspicion of an offence under relevant Anti-Corruption Laws of India and the Principal/Owner has not, within reasonable time, taken visible action to proceed against such offence or reported it to the Vigilance Department, the Monitor may also transmit this information directly to the Central Vigilance Commissioner, Government of India.

(f) The word 'Monitor' would include singular and plural.

……

(For and on behalf of Principal/Owner)

…….

(For and on behalf of Bidder/Contractor)

WITNESS:

1……

(Signature, name and address)

2……..

(Signature, name and address)

Place:

Dated:

INTEGRITY PACT

To,

…….

…….

…….

Sub: Tender ID No 2024_MES_688696_1 CA No: CEJZ/MHOW/35(T) OF 2024-25 FOR PROVN OF HRDC BLDG AT INF SCHOOL, MHOW

Dear Sir,

It is hereby declared that MES is committed to follow the principle of transparency, equity and competitiveness in public procurement..

The subject Notice Inviting Tender (NIT) is an invitation to offer made on the condition that the bidder will sign the integrity agreement, which is an integral part of tender/bid documents, failing which the tenderer / bidder will stand disqualified from the tendering process and the bid of the bidder would be summarily rejected.

This declaration shall form part and parcel of the Integrity Agreement and signing of the same shall be deemed as acceptance and signing of the Integrity Agreement on behalf of the MES.

Yours faithfully,

Chief Engineer Jabalpur Zone

INTEGRITY PACT

To,

HQ Chief Engineer
Jabalpur Zone,
Jabalpur.

SUB: Tender ID No 2024_MES_688696_1 CA No: CEJZ/MHOW/35(T) OF 2024-25 FOR PROVN OF HRDC BLDG AT INF SCHOOL, MHOW

Dear Sir,

I/We acknowledge that MES is committed to follow the principles there of as enumerated in the integrity Agreement enclosed with the tender/bid document.

I/We agree that the Notice Inviting Tender (NIT) is an invitation to offer made on the condition that I/We will sign the enclosed integrity Agreement, which is an integral part of tender documents, falling which I/We will stand disqualified from the tendering process. I/We acknowledge that THE MAKING OF THE BID SHALL BE REGARDED AS AN UNCONDITIONAL AND ABSOLUTE ACCEPTANCE of this condition of NIT.

I/We confirm acceptance and compliance with the Integrity Agreement in letter and spirit and further agree that execution of the said Integrity Agreement shall be separate and distinct from the main contract, which will come into existence when tender/bid is finally accepted by MES. I/We acknowledge and accept the duration of the Integrity Agreement, which shall be in the line with Para 1 of the enclosed Integrity Agreement.

I/We acknowledge that in the event of my/our failure to sign and accept the Integrity Agreement while submitting the tender/bid, MES shall have unqualified, absolute and unfettered right to disqualify the tenderer/bidder and reject the tender/bid is accordance with terms and conditions of the tender/bid.

Yours faithfully,

(To be signed mentioning name by the Authorised Signatory of the Bidder)

Signature Not Verified

Digitally signed by Rahul Shrivastava
Date: 2025.01.30 12:43:22 IST
Location: Ministry of Defence-MES